

Farhan Rasool v. State of U.P.

Allahabad High Court · Division Bench · 25 November 2019 · Writ-C No. 38277 of 2019 · **Writ disposed; relegated to Clause 6.5; coercive action stayed 40 days.**

HEADNOTE

A writ challenging a recovery citation for disputed electricity dues is not entertained where Clause 6.5 of the U.P. Electricity Supply Code, 2005 affords a statutory remedy. The consumer may apply to the appropriate authority within two weeks; that authority is to decide by a speaking order after hearing within 30 days of receiving a certified copy. Coercive recovery is stayed for 40 days or until decision, whichever is earlier; the stay lapses if the consumer does not apply in time.

FACTUAL SUMMARY

Farhan Rasool petitioned the Allahabad High Court to quash a recovery citation dated 25 September 2019 issued by the electricity authorities under section 5 of the Uttar Pradesh Government Electricity Undertakings (Dues Recovery) Act, 1958, seeking to recover Rs. 2,46,530 as electricity dues pursuant to a 10 July 2019 notice. He disputed the correctness of the bill. Counsel for the Electricity Department appeared. The Division Bench noted the statutory forum under the Supply Code and disposed of the writ with a time-bound direction and a limited stay of coercive action.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.5

billing dispute — statutory remedy

HOLDING

Where the consumer disputes the correctness of an electricity bill and seeks to quash a recovery citation, the High Court will not entertain the writ because Clause 6.5 of the U.P. Electricity Supply Code, 2005 provides a statutory remedy. The consumer may approach the appropriate authority within two weeks; that authority is to consider and decide the application by a speaking order after hearing, within 30 days of receiving a certified copy of the order. Coercive action is stayed for 40 days or until the authority decides, whichever is earlier; the stay ceases if the consumer does not approach within the stipulated period. ¶ 4-8

PRINCIPLE TAGS

billing-objection-to-executive-engineer-under-6.5 A writ challenging a recovery citation for disputed electricity dues is not entertained where Clause 6.5 of the U.P. Electricity Supply Code, 2005 affords a statutory remedy.. ¶ 4-8

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — CORRECTNESS OF THE ELECTRICITY BILL AND VALIDITY OF THE RECOVERY CITATION

The Court did not examine the merits of the demand of Rs. 2,46,530 or the citation issued under section 5 of the U.P. Government Electricity Undertakings (Dues Recovery) Act, 1958. ¶ 3-5